

JUSTIFICATION REVIEW DOCUMENT

Program/Equipment: Architect-Engineer (A-E) Type C Services in Support of FTQW 07-2002 Repair Fuel Cell, Building 1171 Eielson Air Force Base, Alaska

Authority: Choose one of the following as applicable:
10 U.S.C. 3204(a)(1), as implemented by FAR 6.302-1(a)(2)(iii), Only one responsible source and no other supplies or services will satisfy agency requirements.

Amount: \$ [REDACTED]

Prepared by: SMSgt Cheyenne Youngbird DSN: 317-377-8742
Base Contracting Officer Date: 2/5/2025
Email: cheyenne.youngbird.1@us.af.mil

Contracting Officer: SMSgt Cheyenne Youngbird DSN: 317-377-8742
Base Contracting Officer Date: 2/5/2025
Email: cheyenne.youngbird.1@us.af.mil

Technical: Captain Michael J. Nash DSN: 317-377-8584
Deputy Base Civil Engineer Date: 2/5/2025
Email: michael.nash.5@us.af.mil

Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.

Office of General Counsel:

Typed Name: Curtis Patteson

DSN: 907-428-6671

Signature: PATTESON.CURTIS. [REDACTED] Digitally signed by PATTESON.CURTIS.WAYNE. [REDACTED] Date: [REDACTED]
WAYNE. [REDACTED] Date: 2025.02.20 15:34:38 -09'00'

Competition Advocate:

Typed Name: Daniel Tatro

DSN: 405-922-2548

Signature: TATRO.DANIEL.R [REDACTED] Digitally signed by TATRO.DANIEL.RALPH. [REDACTED] Date: [REDACTED]
ALPH. [REDACTED] Date: 2025.02.14 09:00:43 -06'00'

Chief of the Contracting Office:

Typed Name: Daniel Tatro

DSN: 405-922-2548

Signature: TATRO.DANIEL.R [REDACTED] Digitally signed by TATRO.DANIEL.RALPH. [REDACTED] Date: [REDACTED]
ALPH. [REDACTED] Date: 2025.02.14 09:02:22 -06'00'

**Justification
and Approval for Other than Full and Open Competition**

1. Contracting Activity: 168 MSG/MSC, W50S6K

2. Description of Action: 168th Civil Engineering Squadron requests a sole source award to Jacobs Engineering Group, Inc. The Government projects award for fiscal year 2025, Air SRM funds will be used. An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).

3. Description of Services: This is an Architect-Engineer (A-E) requirement to perform Type C services in support of the construction of FTQW 07-2002 Repair Fuel Cell, Building 1171 at Eielson AFB, Alaska. The construction contract was awarded on 25 September 2024. The period of performance of this A-E action will mirror the construction contract award (reference construction contract W50S6K24C0002 of 540 calendar days after issuance of the notice to proceed). There are no options required for this acquisition. The independent government estimate for this contract is \$ [REDACTED].

Type C services include documenting and providing answers to Contractor's requests for information (post award), review of submittals, attendance and records at job progress meetings, review of lab results, preparation of as-built drawings, multiple site visits to inspect the progress and quality of construction to ensure the construction contractor is following the approved design. Furthermore, these services assist Government personnel with construction management and inspection to include technical interpretation of drawings and specifications, and review of work in place to substantiate progress payments on a \$ [REDACTED] construction contract.

Type C services follow the completion of Type B services from an A-E contract. Type B services are preparation of the actual plans and specifications that make up the design documentation used for a construction project contract award. In the instant case, Jacobs Engineering Group planned, designed, and "stamped" approved the drawings and specifications for contract W50S6K24C0002. A "stamped" drawing indicates that a licensed professional has reviewed and approved the design, ensuring compliance with relevant codes and criteria, standards, and project specifications. Jacobs Engineering Group performed architecture-design services for the Government under a contract in fiscal year 2019, W91ZRU19F6004, valued at \$ [REDACTED].

4. Authority Cited:

10 U.S.C. 3204(a)(1), as implemented by FAR 6.302-1(a)(2)(iii), Only one responsible source and no other supplies or services will satisfy agency requirements. For DoD, services may be deemed to be available only from the original source in the case of a follow-on contract for continued provision of highly specialized services when it is likely that award to any other source would result in substantial duplication of cost to the Government that is not expected to be recovered through competition; or unacceptable delays in fulfilling the agency's requirement.

5. Reason for Authority Cited: IAW DFARS PGI 202.1, the National Guard Bureau is a DoD Activity. This requirement is a follow-on award to Jacobs Engineering Group, Inc. The requirement was previously negotiated and awarded via task order W91ZRU19F6004. That award included Type A, B, C Services and Code & Criteria Review for the design of the FTQW 07-2002 Repair Fuel Cell, Building 1171. Type A services included the basis of design (specifically the design intent), the development of the project concept, and associated site investigations. The Type B services included the design narrative and the development of the construction documents.

Because Jacobs Engineering Group, Inc designed and certified the drawings and specifications and is liable for the quality of their design, it is economical and efficient to award the Type C services as a sole source follow-on contract.

There is tremendous performance and liability risk associated with another A-E firm taking over the Type C services for a project that was designed by a different firm. Having the original designer, Jacobs Engineering Group, Inc, on contract to perform the construction phase services is necessary for the Government to ensure responsibility for their design, including ensuring the design is constructible, maintainable and operable, that the project documentation is clear, sufficiently detailed, accurate and coordinated, and contains minimal errors.

An award to a new A-E other than Jacobs Engineering Group, Inc would increase the risk associated with these issues and potentially affect the Government's rights under FAR 52.236-23, Responsibility of the Architect-Engineer Contractor, if another A-E were to represent or attempt to revise the current drawings and/or specifications. This clause states that the "Contractor shall be responsible for the professional quality, technical accuracy, and the coordination of all designs, drawings, specifications, and other services furnished by the Contractor". However, if a new A-E were to make recommendations during the Type C services to revise or deviate from the original drawings or specifications, any liability resulting from those changes could not be attributed to the original A-E. This could potentially create a dangerous and complicated scenario if the Government needed to hold the responsible A-E party liable for any errors or deficiencies in the designs, drawings, and/or specifications. Furthermore, award to a new firm would substantially increase the cost of services to the Government and U.S Taxpayer and would also cause unacceptable delays in fulfilling the Government's need for oversight during construction work.

6. Efforts to Obtain Competition: No efforts were made to obtain competition for this one-time requirement due to the rationale described in paragraph 5. This Justification Document will be made public after award through the Government Point of Entry in accordance with FAR 6.305. Fair Opportunity IAW FAR 16.505 was met with the original contract to Jacobs Engineering Group.

7. Actions to Increase Competition: No actions were taken to increase competition since this is a one-time requirement following on to a previously competed project.

8. Market Research: There are many large and small businesses, to include firms of all socioeconomic categories, capable of fulfilling this need for the Government. Market research confirms that Type C Services awarded on a sole source basis to the Designer of Record is in the best interest of the United States Government. All firms, other than Jacobs Engineering Group, Inc, would likely carry more cost and performance risk than Jacobs Engineering Group, Inc. Since Jacobs Engineering Group, Inc previously completed the Type A services which included the basis of design (specifically the design intent), and the development of the project concept, and associated site investigations as well as the Type B services which included the design narrative and the development of the construction documents for the forthcoming construction project, this document has been prepared to justify a sole source award to Jacobs Engineering Group, Inc.

9. Interested Sources: A listing of interested sources was not solicited or received for this acquisition.

10. Other Facts: None.

11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name: Captain Michael J. Nash
Title: Deputy Base Civil Engineer

Date: 2/13/25

Signature: NASH.MICHAEL.JO
SEPH. [REDACTED]
Digitally signed by NASH.MICHAEL.JOSEPH. [REDACTED]
Date: 2025.02.13 15:13:01 -09'00'

12. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name: Captain Michael J. Nash
Title: Deputy Base Civil Engineer

Date: 2/13/25

Signature: NASH.MICHAEL.JO
SEPH. [REDACTED]
Digitally signed by NASH.MICHAEL.JOSEPH. [REDACTED]
Date: 2025.02.13 15:13:20 -09'00'

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable.

This determination will be made using the following: ☐ cost analysis ☐ price analysis ☐ should cost ☐ IGCE ☐ audit: ☒ other: Price was previously negotiated with the original task order W91ZRU19F6004. The price for Type C on CLIN0004 on the task order was [REDACTED], and the AE Jacob's Engineering proposed a \$[REDACTED] on their Type C price update. As the price is lower than what was previously negotiated and agreed upon, the proposed prices are fair and reasonable and in the best interest of the Government.

As a part of this basis, certified cost or pricing data:

☐ will be required.

☒ will not be required and the following exception applies (FAR 15.403):

☒ The estimated cost of the contract action is less than the threshold for certified cost or pricing data.

Typed Name: Cheyenne Youngbird
Title: Contracting Officer

Date: 2/13/25

Signature: YOUNGBIRD.CHEYENNE.KANANI. [redacted]
Digitally signed by YOUNGBIRD.CHEYENNE.KANANI. [redacted]
Date: 2025.02.13 15:56:51 -09'00'

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Typed Name: Cheyenne Youngbird
Title: Contracting Officer

Date: 2/13/25

Signature: YOUNGBIRD.CHEYENNE.KANANI. [redacted]
Digitally signed by YOUNGBIRD.CHEYENNE.KANANI. [redacted]
Date: 2025.02.13 16:02:34 -09'00'